

2.2.2 Whether there has been a decision

Whether a document constitutes a 'decision' or not depends on the substance of its content and not on its form (J 8/81, OJ 1982, 10; see also J 26/87, OJ 1989, 329; J 13/92, T 263/00). The criterion of substance has to be assessed in its procedural context (T 713/02, OJ 2006, 267, R 4/18). A "decision" needs to involve a reasoned choice between legally viable alternatives (T 934/91, OJ 1994, 184). According to T 165/07, the decisive question was whether the document (communication by a formalities officer), when objectively interpreted in its context, could have been understood by its addressees as a final, i.e. not merely preliminary, and binding determination of substantive or procedural issues by the department ("organ") of the EPO which had jurisdiction ("is competent"). In J 12/19 the board shared this view, with the proviso that even a document issued by a department of the EPO that does not have jurisdiction may constitute a decision.

On this point, see also chapter III.K.3. "When is there a decision?"

a) Examples of appealable decisions

(i) A formalities officer's letter rejecting the opposition as inadmissible was held to be an appealable decision in T 1062/99. (See also G 1/02, OJ 2003, 165, a referral occasioned by diverging decisions T 1062/99 and T 295/01, OJ 2002, 251) on a formalities officer's competence to decide on the admissibility of an opposition).

(ii) A document (EPO Form 2901) concerned with the applicant's request for re-establishment in respect of the period for payment of the third renewal fee plus additional fee was deemed to be a decision in J 7/08.

(iii) A communication from the Legal Division to deny the opponent party status in the proceedings pursuant to R 142 EPC and its resulting refusal to consider the observations and requests submitted by the opponent constituted a decision within the meaning of Art. 106 EPC (J 12/19).

b) Examples where the communication was not an appealable decision

The case law of the boards of appeal has established that the following are **not** regarded as appealable decisions:

(i) A request under R 89 EPC 1973 (R 140 EPC) for correction of a contested decision. Not until the request has been decided at first instance can the matter be referred to the board (J 12/85, OJ 1986, 155).

(ii) The preparatory steps referred to in Art. 96(2) EPC 1973 and R 51(3) EPC 1973 (R 71(3) EPC, T 5/81, OJ 1982, 249).

(iii) A communication under R. 57(1) EPC 1973 (R. 79 EPC, T 222/85, OJ 1988, 128), or R. 69(1) EPC 1973 (R. 112 EPC, J 13/83).

(iv) A communication from the opposition division finding that an opposition has been validly filed, and stating that the decision will be taken on that point at the oral proceedings (T 263/00).

(v) An order by a director of a department of first instance (such as an opposition division) rejecting an objection to a member of the division on the ground of suspected partiality. The composition of the division could, however, be challenged on such a ground in an appeal against its final decision or against a separately appealable interlocutory decision under Art. 106(3) EPC 1973 (G 5/91, OJ 1992, 617).

(vi) A "decision" by a director on a request for inspection of file (J 38/97).

(vii) A letter bearing the letterhead of an EPO Directorate-General and signed by an EPO Vice-President, if it is evident from its content that it does not constitute a decision and from its form that it does not emanate from any of the departments listed in Art. 21(1) EPC 1973 (J 2/93, OJ 1995, 675).

(viii) The consistent case law of the boards of appeal has been that the minutes of oral proceedings, and the correction thereof, are not decisions within the meaning of Art. 106 EPC (R 4/18, see T 838/92, T 212/97, T 231/99).

(ix) A communication from a formalities officer primarily dealing with the patentee's request to stay the opposition proceedings and to remit the case to the examination division for a decision on the request for correction under R. 89 EPC 1973 (T 165/07).

(x) A communication under R. 71(3) EPC. This is not intended to terminate the examination procedure but is rather a preparatory action and is therefore as such not appealable (T 1181/04, OJ 2005, 312; T 1226/07; T 1377/15).

(xi) When not acceding to a request to hold oral proceedings in Munich instead of The Hague, the examining division does not take a decision but only expresses the way the EPO is managed (T 1142/12, see also R 13/14).

(xii) A communication of information by which the appellant was informed that, as the decision to grant had been rectified under Art. 109 EPC, the examination procedure was resumed, and it was not possible to file an opposition during this part of the procedure (J 22/12).

(xiii) An order to take evidence is neither an appealable decision under Art. 106(1) EPC nor an interlocutory decision allowing a separate appeal within the meaning of Art. 106(2) EPC. Instead, it is a case-management measure that precedes a substantive decision and cannot be reviewed as long as the proceedings are still pending (T 1954/14).

(xiv) A communication to change in a board's composition with regard either to the number of its members under Art. 21(4)(b) EPC 1973 or to the replacement of a member under Art. 4 of the Business Distribution Scheme of the Technical Boards of Appeal is not a decision (T 1676/08).

(xv) Notification of the case number and the responsible board of appeal by the registry did not constitute a decision under R. 69(2) EPC 1973 (R. 112 EPC) recognising that an appeal was pending (T 371/92, OJ 1995, 324; see also T 1100/97 and T 266/97).

(xvi) A communication from the opposition division refusing a request for postponement of oral proceedings is not open to appeal and not an interlocutory decision against which a separate appeal must be allowed (T 1967/20).

T 26/88 (OJ 1991, 30), which held that a document stating that the patent was revoked under Art. 102(4) and (5) EPC 1973 did not constitute a decision, was overruled by G 1/90 (OJ 1991, 275).

2.2.3 Interlocutory decisions

Under Art. 106(2) EPC (formerly Art. 106(3) EPC 1973) a decision which does not terminate proceedings as regards one of the parties (interlocutory decision) can only be appealed together with the final decision, unless the decision allows a **separate appeal**. The EPC does not explicitly set out the cases in which interlocutory decisions have to allow a separate appeal. Instead, the legislator has expressly left it to the department making the decision to decide whether to allow an appeal; see the "travaux préparatoires" for the EPC 1973 (T 1954/14). It is settled practice to allow a separate appeal against interlocutory decisions on admissibility of an opposition (see e.g. proceedings in T 10/82, OJ 1983, 407) or a finding that a patent as amended meets the requirements of the EPC (see e.g. T 247/85 and T 89/90, OJ 1992, 456).

It is a requirement for admissibility of an appeal against an interlocutory decision within the meaning of Art. 106(2) EPC that the department of first instance allowed a separate appeal (J 8/11).

In T 857/06 the board stated that a first interlocutory decision which does not allow a separate appeal can be appealed together with a second interlocutory decision which does not leave any substantive issues outstanding and which allows a separate appeal.

The board in T 756/14 observed that allowing a separate appeal against an interlocutory decision under Art. 106(2) EPC is a constitutive decision by the examining decision without which the former decision cannot be challenged by way of an appeal and so this aspect must be included in the order too. See also T 1967/20.

2.2.4 Appeals against decisions of the boards of appeal

Art. 106(1) EPC does not provide for appeals against decisions of the boards of appeal. Appeals under Art. 106(1) EPC against final board decisions are therefore not possible and have to be rejected as inadmissible. A limited judicial review of decisions of the boards of appeal was introduced into the EPC 2000, in Art. 112a EPC. See chapter V.B.3. "Petition for review under Article 112a EPC".

In J 3/95 (OJ 1997, 493), the Legal Board of Appeal referred a number of questions, including: In the context of the European Patent Convention, what administrative or jurisdictional measures should be taken in response to requests based on the alleged violation of a fundamental procedural principle and aimed at the revision of a decision taken by a board of appeal with the force of res judicata?

In G 1/97 (OJ 2000, 322), the Enlarged Board of Appeal answered the question as follows:

1. In the context of the EPC 1973, the jurisdictional measure to be taken in response to requests based on the alleged violation of a fundamental procedural principle and aimed at the revision of a final decision of a board of appeal having the force of res judicata should be the refusal of the requests as inadmissible.
2. The decision on inadmissibility is to be issued by the board of appeal which took the decision forming the subject of the request for revision. The decision may be issued immediately and without further procedural formalities.
3. This jurisdictional measure applies only to requests directed against a decision of a board of appeal bearing a date after that of the present decision.
4. If the Legal Division of the EPO is asked to decide on the entry in the Register of European Patents of a request directed against a decision of a board of appeal, it must refrain from ordering that the entry be made if the request, in whatever form, is based on the alleged violation of a fundamental procedural principle and aimed at the revision of a final decision of a board of appeal.

This situation has not been changed by the introduction of a petition for review in Art. 112a EPC (T 365/09). According to the board, a first difference between appeal and petition evidently lay in the fact that, unlike Art. 106(1) EPC, Art. 112a(3) EPC clearly excludes a suspensive effect of the petition. Moreover, a petition for review can, according to Art. 112a EPC, only be based on fundamental procedural violations or defects during the appeal proceedings, which do not include questions relating to patentability. This can be derived from the exhaustive list of fundamental procedural violations and defects in Art. 112a(2) EPC and R. 104 and 105 EPC. This view has, in the meantime, been confirmed in G 3/08 (OJ 2011, 10).

In T 846/01 it was clear that the appellants were not contesting the substance of the opposition division's interlocutory decision, which dealt with the renumbering of the claims

and the adaptation of the description, but were actually trying to reopen the issue of validity which had already been decided in an earlier decision of a board of appeal. Under Art. 106 EPC 1973 and in view of the principle of *res judicata*, this finding in the decision was not open to challenge, even though the opposition division decision was accompanied by a form stating the decision was appealable. See also T 2047/14 on this topic.

2.3. Board competent to hear a case

2.3.1 Technical or Legal Board of Appeal

a) General

The responsibilities and composition of boards are laid down in Art. 21 EPC. In G 2/90 (OJ 1992, 10) the Enlarged Board made it clear that under Art. 21(3)(c) EPC 1973, the Legal Board of Appeal was competent only for appeals against decisions taken by an examining division consisting of fewer than four members and which did not concern refusal of the application or grant. In all other cases, i.e. those covered by Art. 21(3)(a), 21(3)(b) and 21(4) EPC 1973, the technical boards were competent. The provisions of Art. 21(3) and (4) EPC 1973 governing responsibilities and composition were not affected by R. 9(3) EPC 1973 (R. 11(3) EPC).

b) Technical board of appeal competent

Art. 21(3)(a) EPC expressly states that appeals against decisions concerning the limitation or revocation of European patents should be heard by the technical boards of appeal.

An appeal against a decision of an examining division refusing a request under R. 89 EPC 1973 (R. 140 EPC) for correction of the decision to grant was to be decided by a technical board of appeal (G 8/95, OJ 1996, 481, overruling J 30/94). (A board, however, has no appellate competence, in inter partes opposition appeal proceedings, to review the decision on correction of the grant decision taken in ex parte examination proceedings under R. 89 EPC 1973, since that decision does not form the subject of the appeal proceedings before it; see T 79/07, deviating from T 268/02; see also e.g. T 1495/09).

According to T 1382/08, for the purpose of determining competence under Art. 21(3) EPC 1973, a contradictory or unclear impugned decision is to be considered in the light of its legal consequences vis-à-vis the applicant or the impression given to the public as to its legal nature. In the case at issue, it was unclear whether the contested decision of the examining division was actually a refusal of the application or, instead, merely a refusal of a request for a refund of the search fee or confirmation of the loss of rights established in the R. 69(1) EPC 1973 (R. 112 EPC) communication. In the latter two cases, the Legal Board of Appeal would have been competent to hear the appeal under Art. 21(3)(c) EPC 1973. The board found that the decision had the effect of a refusal, which meant that the technical board of appeal was competent.